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| <p><b>4.</b></p> | <p><b>KATZ VS. COLLECTIVE SOCIETY CORP.</b><br/><b>2025-01526146</b></p> | <p><b>MOTION TO STRIKE ANSWER</b></p> <p>The motion of plaintiffs Ilam and Zarnie Katz move for an order striking the defendants’ unverified answer is GRANTED with 30 days’ leave to amend.</p> <p>Plaintiffs Ilam and Zarnie Katz move for an order striking the unverified answer of defendants Collective Society Corp., Brian Foley, and Emma Bergeron. Defendants oppose the motion.</p> <p>Plaintiffs contend that, under Code Civ. Proc. § 446, defendants were required to file a verified answer because they filed a verified complaint. In fact, defendants filed an unverified general denial. (See ROA 14.)</p> <p>Defendants respond by contending only one of the two co-plaintiffs verified the complaint and that the other co-plaintiff should provide a verification before they are required to file a verified answer.</p> <p>Contrary to the objections raised by defendants, if there is more than one plaintiff, verification by one of them is sufficient. (<i>Clairborne v. Castle</i> (1893) 98 Cal. 30. See also <i>Patterson v. Ely</i> (1861) 19 Cal.28.) Likewise, verification of an answer by one defendant is sufficient. (<i>Butterfield v. Graves</i> (1902) 138 Cal.155, 158.)</p> <p>Thus, plaintiffs’ complaint was properly verified with the verification of plaintiff Zarnie Katz. And when a complaint is verified, the answer also must be verified, generally. (<i>French v. Smith Booth Usher Co.</i> (1942) 56 Cal.App.2d 23.)</p> <p>In addition, if the complaint is verified, use of a general denial is not permitted; rather, the denials must be specific. If the complaint is verified and defendant answers with a general denial, the answer may be disregarded and all material allegations in the complaint taken as true. (Code Civ. Proc. § 431.20(a). <i>Pico v. Colimas</i> (1867) 32 Cal. 578, 580.) This is true even if the answer itself is verified. (<i>Dewey v. Bowman</i> (1857) 8 Cal. 145 (general denial does not put in issue facts alleged in verified complaint), overruled on other grounds in <i>Gagliardo v. Hoberlon</i> (1861) 18 Cal. 394.)</p> |
| <p><b>5.</b></p> | <p><b>SADAT VS. NGUYEN</b><br/><b>2024-01444497</b></p>                  | <p><b>MOTION FOR ORDEER TO STAY PROCEEDINGS</b></p> <p>Defendant Olivia Nguyen’s Motion to Order Parties to Mediate Claims and Stay Proceedings is GRANTED.</p> <p>This action arises from alleged breach of a residential lease and fraudulent statements regarding habitability of the residence.</p> <p>Defendant seeks an order compelling the parties to attend mediation pursuant to the 8/4/22 lease agreement. Paragraph 35 of the agreement states in part, “Landlord and Tenant agree to mediate any</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |

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|    |                                              | <p>dispute or claim arising between them out of this Agreement, or any resulting transaction, before resorting to court action.” (Ex. 1, p. 5.)</p> <p>Agreements to attend nonbinding mediation prior to filing suit are generally enforceable in California. (See, e.g., <i>The McCaffrey Group, Inc. v. Superior Court</i> (2014) 224 Cal.App.4th 1330, 1349-1351; <i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 733.)</p> <p>Here, Plaintiff’s complaint arises out of the subject lease agreement which requires the parties to attend mediation before resorting to litigation. Plaintiff has not opposed the motion.</p> <p>Therefore, the motion is granted.</p> <p>The CMC is vacated and the Court sets an OSC re: Mediation for 10/30/2026.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 6. | <b>SHEEHAN VS. SHEEHAN<br/>2024-01414691</b> | <p><b>1. MOTION FOR ATTORNEY FEES</b></p> <p>Plaintiff Colleen Sheehan’s Motion for Attorney’s Fees is DENIED.</p> <p>First, Plaintiff’s request for attorney’s fees for her corporation are improper. Plaintiff cannot request fees for another party and a corporation’s attorney is not the personal representative of the corporation’s shareholders. (See <i>Sprengel v. Zbylut</i> (2019) 40 Cal.App.5th 1028, 1042.) Thus, Plaintiff’s request for Next Generation Classic, Inc.’s attorney’s fees is denied.</p> <p>Second, Plaintiff has failed to present sufficient evidence to support her claim for attorney’s fees. “Reasonableness of the fee is determined by looking to a variety of factors: the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded; the intricacies and importance of the litigation, the labor and the necessity for skilled legal training and ability in trying the cause, and the time consumed. (<i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 558 (cleaned up).) The party seeking to recover fees for prior counsel’s work on a case has the burden of producing evidence to prove the fees are reasonable. (<i>Ajaxo Inc. v. E*Trade Group Inc.</i> (2005) 135 Cal.App.4th 21, 65.)</p> <p>Plaintiff submitted only her declaration attesting to the amount of fees incurred from her former counsel. However, the declaration does not provide any information with which the Court could determine whether the costs were reasonable. Thus, Plaintiff’s request for her prior counsel’s fees is denied.</p> <p>Finally, Plaintiff seeks costs in her Motion. “A prevailing party who claims costs must serve and file a memorandum of costs within 15</p> |